		related Articles of Incorporation, however, show that Plaintiff only has a 30% ownership interest and therefore 30% of the voting rights. In his Complaint, Plaintiff alleges that "[a]t all times relevant to the events alleged herein, Plaintiff was the owner of a 35% membership interest in Blue Gum." (Complaint, ¶ 6.) Although, the Court notes that this is not a verified Complaint. Moreover, Plaintiff's Verified Petition for Writ of Mandate signed on 12/18/2024 states that "Petitioner Zhu is the owner of record of 35% of the issued and outstanding membership interests in Blue Gum." (Verified Petition, ¶ 5.) While Plaintiff argues that he has contributed 56.7% of the capital to the company, Plaintiff does not show proof of an agreement with the corporation and/or its members or managements that he contributed the additional capital in exchange for additional ownership or voting interest. The evidence before the Court shows no agreements or meeting of the minds that would establish that the additional capital was contributed in exchange for additional shares. Similarly, the Operating Agreement appears to show that such interest must only be memorialized by a Certificate of Membership Interest. Plaintiff does not present such a Certificate of Membership Interest that establishes his claimed 56.7% interest in the company. Accordingly, the Court is not positioned to determine whether either Plaintiff is likely to succeed on the merits of the claims asserted in the operative complaint Additionally, the Court is not persuaded that the interim harm to that Plaintiff if an injunction is denied is greater than the interim harm the Defendants are likely to suffer if the injunction is issued. The only harm that Plaintiff alleges will occur appears to have already occurred. On reply, Plaintiff provided evidence of what appears to be a Grant Deed that transfers the property at issue from Blue Gum Warehouse, LLC to Waterwind LLC. Both parties contend that they will lose their voting power if the Court rules against them – making the harm equal. [**Optional to include:** The Court is not prepared to disturb the status quo of the operation of Blue Gum Warehouse, LLC pending a determination on the merits of the action.] Given the above, the Motion is **GRANTED as to Plaintiff's request to mandate the preservation of all financial records** of Blue Gum Warehouse, LLC, Peakland Management Anaheim, Inc., and Peakland Warehouse 1315, Inc., and **requiring Defendants to maintain and not destroy, alter, conceal, or transfer any books, records, bank statements, ledgers, leases, or other financial documents** relating to Blue Gum Warehouse, LLC. The Motion is **DENIED WITHOUT PREJUDICE** as to the other requests. Plaintiff's requests for judicial notice are **GRANTED**. **Defendants to give notice.**
11.	**30-2024-01377570** **Zhang vs. Zhang**	**1. Motion to Enforce Settlement** Plaintiff, Junhua Zhang, moves for an order to enforce the settlement agreement entered into between Plaintiff and Defendant, Junli Zhang, pursuant to Code of Civil Procedure section 664.6, and award of attorney's fees in the amount of $1,400 against Defendant. Code of Civil Procedure section 664.6(a) states: (a) If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the

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<td>parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

“Code of Civil Procedure section 664.6 provides a summary procedure to enforce a settlement agreement by entering judgment pursuant to the terms of the settlement. [Citation.]” (Hines v. Lukes (2008) 167 Cal.App.4th 1174, 1182.)

Plaintiff states that Defendant has failed to close escrow within 75 days of the execution of their settlement agreement as required to buy out Plaintiff’s interest in the property. Plaintiff contends that the subject property must therefore be sold under the terms of the settlement agreement. Plaintiff requests an order for (1) 18851 Quince Circle, Fountain Valley, CA 92708 to be sold, and (2) for Plaintiff to receive 81.5% of the sales proceeds and Defendant to receive the remaining 18.5% pursuant to Sections 2.3 and 5.9 of the settlement agreement.

Plaintiff has not submitted any evidence to support the assertion that Defendant failed to close escrow. The only evidence submitted by Plaintiff is a declaration by counsel. This declaration is insufficient, as it does not mention any failure by Defendant to close escrow. Evidence showing the particular violation asserted here—Defendant’s failure to close escrow and complete purchase within 75 days after the execution of the settlement agreement—is required before the Court can enter the judgment requested by Plaintiff.

Based on the above, the Motion is DENIED without prejudice.

Plaintiff to give notice.</td>
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<td>12.</td>
<td>30-2024-01431856

Vargas vs. Hernandez</td>
<td>1. Case Management Conference
2. Motion to Compel Answers to Form Interrogatories
3. Motion to Compel Answers to Special Interrogatories
4. Motion to Compel Production
5. Motion to Compel Production
6. Motion to Compel Production
7. Order to Show Cause re: Appointment of Referee

Plaintiff Yharetzy Vargas, a minor by and through her guardian ad litem, Yuliana Vargas Pompa (“Plaintiff”) moves to compel defendant Grisell Gua Ramirez Hernandez (“Defendant”) to serve verified responses to Form Interrogatories (Set One), Special Interrogatories (Set One), and Demands for Production (Sets One, Two, and Three) and for an order imposing monetary sanctions against Defendant for her failure to serve timely responses.

Verified responses to the discovery at issue have been provided. Thus, the Motions are DENIED as MOOT.

However, Plaintiff’s requests for monetary sanctions against Defendant and her counsel are GRANTED in the amount of $1,000.00, as the Court finds no substantial justification for Defendant’s delay in providing responses until after these Motions were filed. (Code Civ. Proc., §§ 2030.300(d), 2031.310(h); Cal. Rules of Court, rule 3.1348(a).)
Sanctions to be paid within 30 days.

Moving party to give notice.</td>
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